

STATE OF NEW YORK

9616--A

IN ASSEMBLY

January 21, 2026

Introduced by M. of A. SANTABARBARA -- read once and referred to the Committee on Housing -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the private housing finance law, in relation to enacting the "care workforce housing preference act"

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "care workforce housing preference act".

3 § 2. Legislative findings and intent. The legislature hereby finds
4 that New York's direct care, health, and human services workforce-in-
5 cluding direct support professionals, certified nursing assistants,
6 licensed practical nurses, registered nurses, behavioral health and
7 human services staff, and early intervention and special education ther-
8 apists-faces severe housing affordability challenges that threaten work-
9 force recruitment and retention. To address these challenges, this act
10 establishes a fair-housing compliant preference for members of the care
11 workforce in certain affordable housing programs.

12 § 3. The private housing finance law is amended by adding a new
13 section 47-f to read as follows:

14 § 47-f. Care workforce housing preference. 1. Applicability. The
15 provisions of this section shall apply to:

16 (a) any low-income housing tax credit development financed with either
17 nine percent or four percent bonds and credits;

18 (b) rental housing developments financed with bonds issued by the
19 agency; and

20 (c) rental housing developments assisted with U.S. department of hous-
21 ing and urban development's HOME investment partnership program funds,
22 provided that the sponsor elects to adopt such preference.

23 2. Eligible households. A household shall qualify for the care work-
24 force housing preference if at least one member of the household is
25 employed in a qualifying care occupation, as determined by the agency,
26 including but not limited to:

27 (a) direct support professionals;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (b) certified nursing assistants;
2 (c) licensed practical nurses and registered nurses;
3 (d) behavioral health or human services staff, including those
4 employed by programs overseen by the office for people with develop-
5 mental disabilities, the office of mental health, and the office of
6 addiction services and supports; and

7 (e) early intervention and special education therapists.

8 3. Method of application. (a) The preference under this section shall
9 be administered through lottery weighting or tie-breaking procedures.

10 (b) The preference under this section shall not constitute a set-a-
11 side, and all income-eligible applicants shall remain eligible regard-
12 less of employment status.

13 4. Preference window and cap. (a) The preference under this section
14 shall apply during the first sixty days of each marketing cycle, includ-
15 ing initial lease-up and any subsequent re-rental periods.

16 (b) The preference under this section shall apply until no more than
17 twenty percent of restricted units in the development are leased to
18 households deemed eligible under subdivision two of this section;
19 provided, however, that a project sponsor may elect to implement a ten
20 percent or five percent target.

21 5. Qualified allocation plan scoring. (a) The division of housing and
22 community renewal shall amend the qualified allocation plan to add a new
23 scoring category entitled "care workforce housing". Up to five points
24 may be awarded as follows:

25 (i) five points for adoption of the preference at twenty percent of
26 units together with submission of a verified care workforce marketing
27 and outreach plan;

28 (ii) three points for adoption of the preference at ten percent of
29 units together with such plan;

30 (iii) one point for adoption of the preference at five percent of
31 units together with such plan.

32 (b) The division may also recognize adoption of the preference under
33 this section as a state-designated priority eligible for basis boost
34 where necessary.

35 6. Care workforce marketing and outreach plan. A marketing and
36 outreach plan shall include but not be limited to:

37 (a) named partnerships with provider agencies, unions, hospitals, and
38 other entities representing the care workforce;

39 (b) provision of application materials in multiple languages, and
40 availability of evening and weekend application assistance;

41 (c) voucher-neutral screening policies;

42 (d) weekly tracking of application sources; and

43 (e) close-out and annual reporting on the implementation of the pref-
44 erence under this section.

45 7. Effectiveness and regulations. (a) The provisions of this section
46 shall apply to developments under subdivision one of this section begin-
47 ning upon the first calendar quarter next succeeding the date on which
48 this section shall have become a law.

49 (b) The agency shall be authorized to promulgate any rules and/or
50 regulations necessary to effectuate the provisions of this section.

51 § 4. Severability clause. If any clause, sentence, paragraph, subdivi-
52 sion, or section of this act shall be adjudged by any court of competent
53 jurisdiction to be invalid, such judgment shall not affect, impair, or
54 invalidate the remainder thereof, but shall be confined in its operation
55 to the clause, sentence, paragraph, subdivision, or section thereof
56 directly involved in the controversy in which such judgment shall have

1 been rendered. It is hereby declared to be the intent of the legislature
2 that this act would have been enacted even if such invalid provisions
3 had not been included herein.
4 § 5. This act shall take effect immediately.